

THE CALL CENTER for HILCHOS RIBBIS

UNDER THE AUSPICES OF HARAV PINCHOS VIND SHLITA



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סניף ליקוואוד וגלילותיה

ר' יעקב יצחק ג'קוב שליט"א

Doing Teshuva for Ribis

Q. Over the years I was not so careful with the איסור of Ribis, and I would like to do תשובה. What is the proper way to do תשובה on what I have done?

A. First, any אסור מדאורייתא that you took which was returned. Also, any אסור מדרבנן that you took which was only returned as well, כדי לצאת ידי שמים. [With the exception of Ribis that was given before the loan was arranged or after it was paid up and was not decided that it's dependent on receiving the loan. Regarding Ribis that was given at the time of payment, but not during the duration of the loan, is a matter of dispute and many are lenient.] In addition, since many people don't really know the laws of Ribis one must accept on himself to learn הלכות Ribis, as there is no way he can keep the הלכות properly if he doesn't know its details. Furthermore, strictly speaking it says in ל"ד סי' ח"מ ש"ע ח"מ סי' ל"ד that one must accept on himself, not to lend with Ribis even to גויים (i.e. interest-bearing checking or saving accounts). However, practically speaking the נתיבות המשפט סי' ל"ד ס"ק writes that it doesn't apply these days.

If someone's main livelihood was based on taking Ribis, and he wants to do תשובה, but by returning the Ribis it will basically wipe him out, then the laws of תשובה would be different see 'ע"ד סי' קס"א סעיף ז'.

Q. Besides for returning the Ribis to the borrowers, must I also ask them forgiveness? Is it similar to someone who stole money that besides for returning what he stole, needs to also ask forgiveness for the pain he caused?

A. This is unclear. See 'ע"ד סי' קס"א סעיף ז' who has a ספק about it, since although the lender had no right to take the interest, but at the end of the day the borrower gave it willingly, maybe it's not considered an איסור of אדם לחבירו (See also מנחת חיים - Ribis ח"א עמוד רס"ה). (See also מנחת חיים who states there is no such requirement.)

Q. My father ז"ל was not especially careful with the laws of Ribis, and I know that he has some outstanding interest loans which he is owed interest, can I accept the Ribis that they owe, being that I was not the lender? Furthermore, what can I do as a merit that he should have a כפרה for what he did?

A. It's אסור for you to accept the Ribis payments. To help your father have a כפרה for what he did Harav Elyashiv ז"ל and Harav Shteinman ז"ל said that the best thing is to spread awareness in Ribis (i.e. distributing ספרים and sponsoring שיעורים ...).

Did you know? There are many פוסקים who hold that anything you accepted as Ribis is not considered yours, and if someone gave someone an אחרון as a Ribis payment, he will not be יוצא even מצוה the first day of סוכות.

Using someone else's credit card

Q. I have a twenty-five-thousand-dollar line of credit that I don't use. My friend who needs a loan for his business asked if he could use it, and that he will pay back the loan with monthly installments directly to my bank. When he tried setting up the monthly direct payments he ran into issues and needed my help. The setup got delayed resulting in the payment not going through at the proper time. Subsequently I was charged a late fee and interest. Can I pass on the charge to him or not?

A. No, you may not charge him the late fee or interest. The reason for this is, since according to Halacha we view this loan as if **you** borrowed the money from the credit card company and then relent it to your friend. Consequently, any extra money you charge him in addition to that of the loan is Ribis.

Q. I own a house and rent it out, though for practical purposes I have the water bill under my name. However, I made up with the tenant that he should deal with the water bill each month and pay the bill directly to the water company. This month he was late, and I was charged a late fee and interest. Can I pass it on to the tenant or not?

A. Since we are dealing with Ribis on a rabbinical level Ribis, there are those who permit it, as they view it as an expense to facilitate the loan which one may pass on to the borrower. If one wants to be lenient, he may rely on the lenient opinions, עיין בספר רבית הלכה למעשה ברית פנחס פרק ו', סעיף כ"ז.

Q. I have a large credit limit on my credit card, so I have allowed a few schools to use my credit card monthly for large amounts of money. However, to avoid any late fees and interest I stipulated that they must set up monthly automatic payments on the due date insuring that they are never late. This month however one of the schools didn't have money in their account, so the payment didn't go through, and I was charged the late fee and interest. Can I ask them to reimburse me for the fees and interest I was required to pay or not?

A. If the school was able to let you know that they couldn't make this month's payment on time but were negligent by not making you aware, and you would've been able to make the payment yourself and avoid the interest, then it would be permitted. The reason for this is that we look at them as a מזיק since you trusted them to take care of the payments, and by them not notifying you in a timely fashion, they caused you a damage. But if it was an אונס that caused them not to realize that the payment won't go through, they are not obligated to pay you מזיק so asking them to reimburse you would be Ribis. על פי שו"ת מהרשד"ם. וכן פסק הרב שלמה מילר שליט"א שמחוייב לשלם מדין חו"מ סי' קע"ט.

Story

After a member from the חברה קדישא had been busy burying a נפטר, he arrived home and saw that his wallet, which contained a very large sum of money, had been lost. After some thought, he realized that the money had fallen out while he was burying the נפטר. The gravedigger turned to Harav Shmuel Vosner זצ"ל and asked, is it permissible to open the grave to take out the money? Since it was a large sum, he permitted the grave to be opened immediately before the נפטר would start to decay and only after asking forgiveness from the נפטר, and so he did. When he opened the grave, he was very frightened when he saw three snakes biting and eating the flesh of the deceased. Although he had already seen some horrific scenes in his life, he had never seen anything so terrible and shocking. Shocked to the core of his soul, he immediately closed the tomb and came to Harav Vosner זצ"ל to tell him the terrible scene he had seen. Harav Vosner זצ"ל asked the gravedigger what the name of the deceased was, and the gravedigger told him his name. He said to him, "I know the man, and he used to lend with ribis, and I warned him several times, and he did not listen, and this is his punishment. He added that it is a מצוה to publish this story so that people may hear and see. And this that he was punished with a snake, for the תורה has stated the prohibition in the words "לא תשיך" meaning "don't bite". And the man who lends with ribis bites his brother, and in return he is punished with the punishment of a snake bite. May Hashem protect us and save us.



Did you know that Chazal say that someone who lends with ribis will not get up for תחיית המתים?

Apple Bank Update:

We are happy to announce that Apple Bank has upgraded their היתר עיסקא to an acceptable one and is also offering a היתר עיסקא פרטי which can be signed by every individual depositor.

Please note: One must make sure to sign the היתר עיסקא. Just relying on the היתר עיסקא hanging on the wall is extremely questionable.

הגליון נדבה לזכות ולעילוי נשמת

ר' דוד ע"ה בן יבלט"א ר' פנחס שליט"א
נלב"ע י"ט ניסן תש"פ

ר' משה יצחק גרשון בן ר' אברהם יהודה ז"ל
(Jacobowitz) - יום היארצייט י"א סיון